

CHAPTER 15.

An Act to make further provision as to the organisation and conditions of service of the Auxiliary Air Force and Air Force Reserve, and for purposes connected therewith.

[14th July 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The power of His Majesty under section six of the Air Force (Constitution) Act, 1917 (in this Act referred to as "the principal Act"), to apply by Order in Council to the auxiliary air force or to the officers and men of that force any of the enactments relating to the territorial army or the officers and men of that army, shall be extended so as to include power to apply Part I. of the Territorial and Reserve Forces Act, 1907, to the auxiliary air force and to the officers and men of that force and also to the territorial army and to the officers and men of that army with such modifications as may be necessary—

Constitution
of county
joint asso-
ciations and
auxiliary
air force
associations.
7 & 8 Geo. 5.
c. 51.
7 Edw. 7.
c. 9.

- (1)—(a) to provide for the establishment and constitution of a county joint association under the said Part I., which shall, as respects the county, exercise the powers and perform the duties of an association under the said Part in relation both to the territorial army and to the auxiliary air force, and to provide for the application of the provisions of that Part with respect to the Army Council, to army services and to the territorial army, to the Army Council and Air Council or either of them, to army and air force services or either of them and to the territorial army and the auxiliary air force, or either of them, respectively ;

(b) to define the relations and responsibilities of any such county joint association to the Army Council and the Air Council respectively ; and

- (2) to provide for the establishment and constitution for any areas which in the opinion of the Air Council cannot suitably be administered

through county joint associations constituted under the preceding paragraph, of auxiliary air force associations; and

- (3) to provide for the termination of county joint associations either generally or in special cases, and on such termination for the establishment of associations constituted under the Territorial and Reserve Forces Act, 1907, or of auxiliary air force associations; and
- (4) to provide for the transfer and adjustment of any powers, duties, assets and liabilities on the establishment or termination of county joint associations.

Conditions
of service of
auxiliary air
force.

2. The aforesaid power of His Majesty under section six of the principal Act shall be extended so as to include power to apply any enactments referred to in that section to the auxiliary air force, or to the officers or men of that force, with such modifications as may be necessary to make it a condition, on the acceptance of a commission as an officer or on the enlistment of a man in the auxiliary air force, that the person so commissioned or enlisted shall enter into an agreement to accept as an obligation the liability (whether or not the army or air force reserve is called out on permanent service) to be called out and to serve within the British Islands in defence of the British Islands against actual or apprehended attack, and to provide accordingly for the application of the provisions of section twenty of the Territorial and Reserve Forces Act, 1907, with the necessary modifications, to any such man who fails to fulfil such obligations as aforesaid.

Conditions
of service of
air force
reserve.

3. The power of His Majesty under section six of the principal Act to apply by Order in Council to the air force reserve or to the officers and men of the air force reserve any of the enactments relating to the army reserve or to the officers and men of the army reserve shall be extended so as to include power to apply any of those enactments to the air force reserve, or to the officers or men thereof, with such modifications as may be necessary—

- (1) to provide that, notwithstanding anything contained in subsection (1) of section thirty of the Territorial and Reserve Forces Act, 1907, men

may be enlisted into the air force reserve either as reservists or as special reservists, whether or not such men have served in the regular air force; and

- (2) to make it a condition on the enlistment of a man in the regular air force or the air force reserve after the date of the order, that he shall accept as an obligation the liability during his service in the reserve (whether or not the army or air force reserve is called out on permanent service) to be called out and to serve within the British Islands in defence of the British Islands against actual or apprehended attack, and to provide that any man of the regular air force enlisted before the date of the order who may after that date be transferred to the air force reserve, or any man in the air force reserve at that date, may agree in writing to accept as an obligation such liability as aforesaid; and
- (3) to provide that a man who is liable to be called out and to serve in the circumstances mentioned in this section shall, when called out for such service be deemed to have been called out on permanent service, and to be subject to the Air Force Act accordingly; and
- (4) to provide for the enlistment of men into the air force reserve as special reservists with a liability to serve within the limits of the British Islands only.

4. An Order in Council made in pursuance of any of the foregoing provisions of this Act may make such supplemental and consequential modifications (if any) of the provisions of the Reserve Forces Acts, 1882 to 1907, and the Territorial and Reserve Forces Act, 1907, including the provisions as to the service and publication of notices, and contain such supplemental and consequential provisions, as may appear to His Majesty in Council to be necessary or expedient.

Power to make supplemental modifications.

5.—(1) It shall be lawful for His Majesty by Order in Council declaring that a case of emergency exists, to order a Secretary of State to give, and when given to revoke or vary, such directions as may seem necessary

Calling out for service in defence and termination of such service.

or proper for calling out to serve within the British Islands in defence of the British Islands against actual or apprehended attack all or any of the officers and men of the auxiliary air force or air force reserve who in pursuance of this Act are liable to be called out and to serve as aforesaid.

(2) All directions given in pursuance of such order shall be obeyed as if enacted in this Act and every officer and man for the time being called out by such directions shall attend at the place and time fixed by those directions.

(3) It shall be lawful for His Majesty by Order in Council to declare that a case of emergency no longer exists, and thereupon the Secretary of State shall give such directions as may seem necessary or proper for terminating the service under this section of the officers and men of the auxiliary air force and air force reserve.

(4) Until any such Order in Council as is mentioned in the last preceding subsection has been made, the Secretary of State may from time to time, as he may think expedient for the public service, give such directions as may seem necessary or proper for dispensing with the service under this section of any officers and men of the auxiliary air force or the air force reserve and for calling out any officers or men of that force or that reserve to serve under this section whether the service under this section of such officers or men has been previously dispensed with or not.

Short title,
savings, and
interpreta-
tion.

6.—(1) This Act may be cited as the Auxiliary Air Force and Air Force Reserve Act, 1924.

(2) Except as otherwise expressly provided, nothing in this Act shall affect any power of His Majesty by Order in Council to apply to the air force reserve or to the auxiliary air force or to the officers or men of those forces any enactments relating to the army reserve or to the territorial army or to the officers or men of the army reserve or the territorial army.

(3) The powers conferred by this Act with respect to the conditions on the acceptance of commissions in the auxiliary air force or the enlistment of men in the auxiliary air force or the air force reserve shall be without prejudice to any other power conferred under or by virtue of any Act or Order in Council to give directions for the

embodying of the auxiliary air force or the calling out on permanent service of the air force reserve.

(4) In this Act—

- (i) references to the British Islands shall be construed as exclusive of the Irish Free State ;
- (ii) references to the Reserve Forces Act, 1882, and to the Territorial and Reserve Forces Act, 1907, shall be construed as references to those Acts as amended by any subsequent enactment.

(5) For the purposes of this Act and of any orders made thereunder and of any enactments as applied or adapted by any such order, service on any flight of which the points of departure and intended return are within the British Islands or the territorial waters thereof, shall be deemed to be service within the British Islands notwithstanding that the flight may in its course extend beyond those limits. .

CHAPTER 16.

An Act to amend the law of Scotland relating to payment by instalments of sums decerned for in small debt courts, and to the arrestment of wages. [14th July 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The power conferred on the sheriff and the justices respectively by section eighteen of the Small Debt (Scotland) Act, 1837, and section eleven of the Justices of the Peace Small Debt (Scotland) Act, 1825, to direct that any sum found due shall be payable by instalments shall, in any case where such sum consists of arrears of rent, include power to annex to any such direction such condition as the sheriff or the justices may think fit with regard to the punctual payment of sums to become due by the defender to the pursuer in the future in respect of rent; and, in the event of the failure of the defender to comply with any such condition, it

Power to direct payment by instalments of sums found due in small debt courts in respect of arrears of rent.
7 Will. 4. & 1 Vict. c. 41.
6 Geo. 4. c. 48.